

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR C61
HON. JENNIFER M. MCCARTNEY

Date: 9/23/2026

Courtroom Rules and Notices

The Court will continue to upload tentative rulings as they are completed. Please be sure to keep checking until 8:30 AM on the day of your hearing.

Written responses, oppositions, or filings that are filed later than 12:15 PM the day before the hearing on the motion will go on second call by the Court for the Court to have an opportunity to review any last-minute filings. If a party files a written response, opposition, or any filing after 12:15 PM on the day before the hearing, the party must ensure they are available for the Court's afternoon calendar the day of the hearing.

Submitting on tentative rulings: If all counsel/parties intend to submit on the tentative ruling and do not desire oral argument, please advise the Courtroom Clerk or Courtroom Attendant by calling (657) 622-5261 – both counsel need to state they are submitting on the tentative. Please do not call the Department unless all parties submit to the tentative ruling. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling, and the prevailing party shall give notice of the ruling and prepare an order for the Court's signature if appropriate under Cal. R. Ct. 3.1312.

Non-appearances: If nobody appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

#	Case Name	Tentative
1	30-2026-01581477 Gross vs. Gross	On the Court's own motion, this matter is being continued to 9/30/2026 at 8:30 AM in Department C61. The Court will not accept any further filings regarding the Anti-Slap Motion by either party. The Court is to provide notice of the new court date.
2	30-2026-01544463 John Gylstrand, successor Trustee of the Gylstrand Family Trust U.D.T. dated 7- 7-89 vs. Lehman	The Court has read and considered the Defendant's Motion to Withhold Entry, Reconsider and Correct the Minute-Order Ruling and Set Aside Proposed Judgment Before Entry (ROA 139), Memorandum of Points and Authorities (ROA 131), Declaration in Support (ROA 133), Proof of Service (ROA 135), and Plaintiff's Opposition. The Court takes Judicial Notice of the 5/27/2026 Minute Order (ROA 112), the Stipulation for Entry of Judgment (ROA 113), the Court's Electronic Recording of the 5/27/2026 Hearing, the Complaint (ROA 2), Proof of Service of Summons (ROA 8), Proof of Service of Summons & Complaint-Unnamed Occupants (ROA 10), and the 9/2/2026 Minute Order (ROA 129). California Code of Civil Procedure §1008(a) states, "When an application for an order has been made to a judge, or to a court, and refused in whole or in part, or granted, or granted conditionally, or on terms, any party affected by